

		Permanente Parties,” which includes any SCPMG physician. (Adkins Decl., ¶ 2, Ex. A, p. 77.) Similarly, the provision in the Newborn information enrollment form provides that “any claim for medical or hospital malpractice” must be decided by binding arbitration. (Adkins Decl., ¶ 5, Ex. D.) This language covers Plaintiff’s claims which relate to the medical care she received. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (Howard v. Goldbloom (2018) 30 Cal.App.5th 659, 663.) The Court finds the Agreement/EOC covers Plaintiff’s claims. Enforceability of the Agreement/EOC As stated above, once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (Rosenthal, supra, 14 Cal.4th at p. 413.) Plaintiff has not opposed the motion and has therefore not raised any defenses as to enforceability. Accordingly, the Court GRANTS Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D.’s petition to compel arbitration. The Court STAYS the action against Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D. pending the completion of arbitration. The Court SETS an ADR Review Hearing re: Status of Arbitration for 3/15/27 at 8:30 a.m. in Department C15.
5	Jacobson v. Davidson 2026-01543879 Motion to Compel Arbitration	The Motion to Compel Arbitration by Defendants Keith Davidson, Stewart Albertson, and Albertson & Davidson, LLP is GRANTED. This action arises from the attorney Defendants’ representation of Plaintiff in underlying trust/inheritance proceedings. (Complaint, ¶¶ 1-8.) Plaintiff alleges Defendants failed to provide the funds Plaintiff is entitled to because Defendants (1) applied improper/inconsistent fees and failed to account for his funds, and (2) Defendants claim they issued checks which Plaintiff never received or cashed. Plaintiff seeks damages in excess of \$615,000 and an accounting of his funds. <u>Legal Standard:</u> “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the

	respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists," except under certain situations outlined by statute. (Code Civ. Proc. § 1281.2.) There is a public policy in favor of arbitration under federal and state law." (<i>McManus v. CIBC World Markets Corp.</i> (2003) 109 Cal.App.4th 76, 85.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration." (<i>United Transportation Union v. S. Cal. Rapid Transit Dist.</i> (1992) 7 Cal. App. 4th 804, 808.) Accordingly, "[t]he court should order the[] [parties] to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (<i>Id.</i>) "[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (<i>Green Tree Fin. Corp.-Alabama v. Randolph</i> (2000) 531 U.S. 79, 91.) "General principles of contract law determine whether the parties have entered a binding agreement to arbitrate." (<i>Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC</i> (2012) 55 Cal. 4th 223, 236.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (<i>Id.</i>) <u>Application:</u> Defendants move to compel arbitration based on the parties' Contingency Fee Agreement which stated in part, "Any dispute, claim or controversy arising out of or relating to this Agreement shall be determined by arbitration..." (Davidson Decl., Ex. A.) The Agreement broadly defines such claims to include, "the construction, application or performance of any obligations and services including claims of malpractice; and, the breach, termination, enforcement, interpretation or validity, including the determination of the scope of applicability, of this Agreement to arbitrate." (Davidson Ex. A, ¶ 10(a).) However, the Agreement further specifies that any "dispute over attorney fees" shall be subject to non-binding arbitration pursuant to California Business and Professions Code section 6200 et seq. ("Mandatory Fee Arbitration Act"). Here, Defendant asserts that Plaintiff's claims are subject to binding arbitration under the Agreement.
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		Plaintiff has not filed a timely opposition to the motion. However, on 7/13/26, Plaintiff filed a declaration describing the basis for his claims and asserting that his claims in this lawsuit “are not about disputing attorney fees” but rather the wrongful retention of funds, misrepresentation of payments, and failure to account for funds held in trust. It is not clear whether Plaintiff’s declaration is intended to oppose arbitration. Based on the allegations of the complaint and the declarations of Plaintiff and Defendants, this action falls within the binding arbitration clause of the attorney-client agreement. Therefore, the action is stayed and the parties are ordered to attend arbitration consistent with the Agreement. On July 20, 2026, the Court will discuss setting a review hearing and advancing the CMC set for 8/10/26, to a new date.
6	Sui v. Kexin USA, Inc. 2025-01452561 Motion to Compel Answers to Form Interrogatories Motion to Compel Further production	Motions 1-3: Motions to Compel Responses Plaintiff Honsong Sui’s Motion to Compel Responses to Form Interrogatories-Employment (Set One); Motion to Compel Responses to Form Interrogatories-General (Set One); and Motion to Compel Responses to Request For Production of Documents (Set One) are DENIED, in part, and GRANTED, in part. Plaintiff moves for an order compelling defendant Kexin USA, Inc. to serve responses to Plaintiff’s Form Interrogatories-Employment (Set One), Form Interrogatories-General (Set One), and Request For Production of Documents (Set One) (collectively, “Written Discovery”); and for an award of monetary sanctions against Defendant. As an initial matter, the Court finds Plaintiff properly served defendant Kexin USA, Inc. with the Written Discovery via substituted service. (See Code Civ. Proc., § 415.20, subd. (a).) 4 After the motions were filed, Defendant served verified responses to the Written Discovery on 8/11/25. Thus, the motions are moot as to the responses. Nevertheless, Plaintiff is entitled to sanctions concerning the instant motions. Defendant has not established substantial justification for opposing the motion. Plaintiff seeks monetary sanctions for each motion in the amount of \$3,322.50 (4.5 hours at \$750/hour, plus \$60 filing fee), totaling \$9,967.50 for all three motions. The Court finds this amount to be